

24TRCV03982 24TRCV03982

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Case Number: 24TRCV03982 Hearing Date: September 2, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday – September 2, 2026

Calendar No.

PROCEEDINGS

Andreas

Klohn, et al. v. General Motors, LLC, et al.

24TRCV03982

1.

Andreas Klohn, et

al.'s Motion to Compel Deposition of Defendant's Person Most Qualified

TENTATIVE RULING

Andreas Klohn, et al.'s Motion to Compel Deposition

of Defendant's Person Most Qualified is granted, in part, and denied, in part.

Background

Plaintiffs filed their Complaint on November 25, 2024.

This is a “Lemon Law” case brought by Plaintiffs concerning a 2023 GMC Yukon. Plaintiffs allege that the vehicle suffers from widespread defects. Defendant was unable to repair their vehicle within a reasonable number of attempts. Plaintiffs further allege that Defendant knew that the vehicle suffered from the prevalent defects but nevertheless refused to repurchase the vehicle—a willful violation of the Song-Beverly Consumer Warranty Act (“Song-Beverly Act”).

Motion to Compel Deposition and Production of Documents

The party noticing the deposition may move for an order compelling appearance at the deposition and production of documents, pursuant to the deposition notice, from the party deponent who fails to appear or produce materials requested in the deposition notice, and who has not served a valid objection under § 2025.410(a). CCP § 2025.450(a).

“The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” CCP § 2025.450(b)(2). Plaintiffs adequately set forth a meet and confer declaration stating that Plaintiffs contacted the deponent to inquire about the nonappearance. (Decl., Matt Xie, ¶¶ 16-22).

Plaintiffs move for an order compelling Defendant’s person most qualified to appear and testify at his or her deposition. The motion is made on the grounds that Defendant has not made the deponent available for deposition and Defendant has failed to provide a date for the deposition. Instead, Plaintiffs contend that Defendant imposed boilerplate objections. More specifically, Plaintiffs move “for an order striking Defendant GENERAL MOTORS LLC’s (“Defendant”) objections and to compel (1) the testimony from Defendant’s Person Most Qualified (“PMQ”) pertaining to Matters for Examination 1 through 19, and (2) responses and production of documents to Plaintiffs’ associated Request for Production of Documents, numbers 1-35 (collectively, the “Requests”), at the time of the PMQ deposition.” (Notice of Motion, p. 3, lines 2-8).

Cal.

Rules of Court Rule 3.1345(a)(5) states:

“Except

as provided in (b), any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement.

The motions that require a separate statement include a motion: (5) To compel or to quash the production of documents or tangible things at a deposition.”

Cal.

Rules of Court, Rule 3,1345(b) states:

“A

separate statement is not required under the following circumstances:

(1)

When no response has been provided to the request for discovery; or

(2)

When a court has allowed the moving party to submit--in place of a separate statement--a concise outline of the discovery request and each response in dispute.”

Plaintiffs

filed and served the required separate statement.

Defendant

filed an opposition. The opposition makes clear that the real point of contention between the parties is not merely involving scheduling the deposition. Instead, Defendant states that it has agreed to produce a PMQ with respect to categories 1 to 4, 7, and 10 at the time of deposition. Defendant argues that it has already produced documents in response to Requests Nos. 1-9, 12, 18 and 22.

However,

Defendant argues that it objects to Category Nos. 5, 13 and 16-19 and Requests Nos. 13, 15, 16, 32 and 35 as they seek testimony and documents related to internal GM procedures that are not relevant for purposes of this action. Defendant also argues that Category Nos. 6, 8, 9, 11-14 and 15 and Request Nos. 10, 11, 14, 17, 19-21, 23-31, 33 and 34 seek information and documents concerning third

parties' complaints and vehicles. Further, Defendant argues broadly that Plaintiffs are attempting to seek trade secret information of Defendant.

As

to the objections made by Defendant to the particular "categories" noted above, the Court is not aware of a proper procedural method to enforce Defendant's objections other than perhaps for Defendant to move for a protective order or moved for an order to quash the deposition notice. In fact, the Court notes that Plaintiffs did not even set forth these "categories" in his own separate statement most likely because of this fact. Thus, the Court will proceed to only rule on the document requests that are in dispute with this motion.

At

the outset, the Court notes that "air conditioning system defect" is defined by Plaintiff as follows: "The term "AIR CONDITIONING SYSTEM DEFECT" shall be understood to mean such defects which result in symptoms including, but not limited to: front air conditioner ("A/C") not blowing cold; rear A/C not blowing cold; A/C discharge hose malfunction; A/C hose from compressor to condenser leaking; rear evaporator replacement; A/C seal replacement; front evaporator leak; front evaporator replacement; rear evaporator leak; rear evaporator replacement; and any other concern identified in the repair history for the subject 2023 GMC Yukon; Vehicle Identification Number 1GKS2EKL2PR161970." (Plaintiffs' Ex. A, para. 5). Notably, the definition specifically relates and limits the definition to the vehicle in question.

Request 10 states: "All documents YOU have issued with respect to the AIR CONDITIONING SYSTEM DEFECT that Plaintiff have experienced with the SUBJECT VEHICLE."

Request

11 states: "Provide each and every opinion/expert witness report that YOU have used or received in any proceedings with respect to the AIR CONDITIONING SYSTEM DEFECT."

Requests

14 to 17, 19 to 21, 23 to 31, 33, and 34, all similarly request documents related to the air conditioning system defect as defined by Plaintiffs.

As

to Requests 10 and 11, 14 to 17, 19 to 21, 23 to 31, 33, and 34, the Court

rules that Defendant has not established that the objections are meritorious, and the Court finds that Plaintiffs set forth good cause for the production of the documents. In *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 154, the Court of Appeal held that the trial court did not err in refusing to exclude evidence with respect to vehicles other than Plaintiff's vehicle because Plaintiff's expert testimony was properly limited to the same type of transmission involved in Plaintiff's vehicle as well as the other vehicles at issue. Here, the requests are not seeking discovery related to all vehicles of the same year, make, and model of Plaintiffs' vehicle, which may have been authorized under *Donlen*, but instead are limited to Plaintiffs' own vehicle.

The

Court notes that the addition of the wording in Request 34 of "in any case," is confusing and ambiguous. As the definition of "air conditioning system defect," is limited to the defect involving Plaintiffs' vehicle, it is unclear why there would be other cases involving this vehicle. The Court simply states that any production should be made based on the definition of "air conditioning system defect."

As

to Requests 32 and 35, Plaintiffs have not shown good cause for the production of these documents.

Request

32 states: "Please produce all LEMON LAW DOCUMENTS."

Request

35 states: "Please produce all documents, including but not limited to electronic data and e-mails, concerning or relating in any way to any GENERAL MOTORS LLC, employee, subsidiary, department, and/or division reporting or organizational structure and/or charts effective from 2023 to the present, including any organizational chart or other documents describing any reporting or superior subordinate relationship, or any policies and procedures regarding communications between employees, subsidiaries, departments, and/or divisions."

These

requests are overly broad and not designed to lead to the discovery of admissible evidence in an action based on the Song Beverly Act.

Thus,

Plaintiffs' motion to compel deposition and production of documents is granted, in part. Defendant's person most knowledgeable is ordered to appear for deposition and produce documents at a date and time that can be agreed upon by the parties. Documents related to requests 32 and 35 are not required to be produced by Defendant. If no agreement on a date and time can be reached, the deponent is ordered to appear at a reasonable date and time to be determined by the moving party.

Plaintiff is ordered to give notice of the Court's ruling.